

2018 SCC OnLine All 3174

In the High Court of Allahabad
(BEFORE PANKAJ MITHAL AND PANKAJ BHATIA, JJ.)

Vikas Gupta and Another Petitioners;

v.

State of U.P. and 2 Others Respondents.

Writ - C No. - 40668 of 2018

Decided on December 20, 2018

Counsel for Petitioner:- Satyaveer Singh

Counsel for Respondent:- C.S.C., Pankaj Srivastava

ORDER

1. Petitioners are having an electric connection in the name of their father and grand-father Munshi Lal Gupta.

2. The aforesaid electricity connection was checked on 07.09.2017 and again on 19.01.2018. The petitioners were found using electricity in an unfair manner and accordingly a case of theft of electric energy was registered on the basis of both the above checking on the same day. The petitioners were provisionally assessed for the use of electricity on 26.09.2017 and 01.02.2018 respectively but no objections to the said assessment were submitted by any of the petitioners.

3. Accordingly, treating the provisional assessment to be final demand notices were sent to the petitioners by registered post on 21.12.2017 and 01.05.2018 respectively.

4. It is in view of the aforesaid facts and circumstances that the impugned demand of electricity dues has been raised against the petitioners.

5. The submission of learned counsel for the petitioners is that the petitioners were never served with any notice as alleged before issuing the impugned recovery certificates.

6. The question of service of notice is a matter dependent upon facts which can more appropriately, we dealt with if the petitioners prefer appeal under Section 127 of the Electricity Act, 2003 against the final assessments. Moreover, the petitioners if want to make the payment in installments as alleged, they can move to the Executive Engineer for fixation of installments in accordance with Section 6.14 of the Electricity Supply Code, 2005.

7. In view of the above alternative remedies available to the petitioners, we are not inclined to entertain this petition. It is

dismissed on the ground of alternative remedy with liberty to the petitioners to avail them as may be advised.

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